

Industrial Disputes (Tamil Nadu Amendment) Act, 2008

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State of Tamilnadu- Act

Industrial Disputes (Tamil Nadu Amendment) Act, 2008

TAMILNADU

India

Industrial Disputes (Tamil Nadu Amendment) Act, 2008

Act 45 of 2008

Published on 18 September 2008

Commenced on 18 September 2008

[This is the version of this document from 18 September 2008.]

[Note: The original publication document is not available and this content could not be verified.]

Industrial Disputes (Tamil Nadu Amendment) Act, 2008

(Tamil Nadu Act

45 of 2008

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Statement of Objects and Reasons - Industrial Disputes (Tamil Nadu Amendment) Act, 2008 (Tamil Nadu Act

45 of 2008

). - At present, under the Industrial Disputes Act, 1947 (Central Act XIV of 1947), Labour Courts and Tribunals are not having the power to execute their own awards like decree of the Civil Court in case the award in question is not being implemented by the employer. In order to alleviate the difficulties experienced by the workmen in getting the awards implemented by the employer, the Government have decided to confer powers of Civil Court to Labour Court and the Tribunal to execute its own award as a decree of Civil Court. It is also proposed to enable the Labour Court and Tribunal

to execute any settlement under the said Act as a decree. The Government have, therefore, decided to amend the said Central Act XIV of 1947 suitably, in its application to the State of Tamil Nadu.

2. The Bill seeks to give effect to the above decision.

Published in Part IV-Section 1 of the Tamil Nadu Government Gazette Extraordinary dated the 14th May 2008.

Receded the assent of the President on the 18th September 2008 and published in Part IV-Section 2 of the Tamil Nadu Government Gazette Extraordinary dated the 29th September 2008.

An further to amend the Industrial Disputes Act, 1947 in its application to the State of Tamil Nadu.

Be it enacted by the Legislative Assembly of the State of Tamil Nadu Fifty-ninth Year of the Republic of India as follows:-

1.

Short title, extent and commencement.

(1)

This Act may be called the Industrial Disputes (Tamil Nadu Amendment) Act, 2008.

(2)

It extends to the whole of the State of Tamil Nadu.

(3)

It shall come into force on such date as the State Government may, by notification, appoint.

2.

Insertion of new section 11-B.

- After section 11-A of the Industrial Disputes Act, 1947 (Central Act XIV of 1947), the following section shall be inserted, namely:-

"11B. Power of a Labour Court or Tribunal to execute its award by decree. - A Labour Court or a Tribunal shall have the power of a civil court to execute its own award as a decree of a civil court and also to execute any settlement as defined in clause (p) of section 2 as a decree."

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